RATE CONFIRMATION RULES AND CONDITIONS

1 .COMMUNICATION: Carrier must provide GFU with correct cell number of a driver every day before 10am, with current location and shipment status. No communication will result in a $150.00 deduction YOU MUST HAVE ALL PAPERWORK SIGNED AND PROVIDE IT TO US NO LATER THAN 1 HOUR AFTER DELIVERY. No communication will result in a $150.00 deduction. Carrier is responsible to provide in and out times from shipper no later than 24 hours after the pickup and in and out times from the receiver no later than 24 hours after the delivery, failing to do so will result in $75 deduction.

2 .MACROPOINT TRACKING: Carrier and Carrier's driver must ensure MacroPoint tracking is accepted by driver for any shipment noted as requiring MacroPoint tracking on Load Confirmation. Tracking must always maintain active tracking status at all times from arrival at Shipper until departure from final Consignee. Failure to comply will result in a $150.00 deduction.

3. CUSTOMER RELATED INFORMATIONS: Carrier is not allowed to contact Gray Falcon United LLC clients directly. This will result in terminating "Broker & Carrier" agreement and every rate con ever made with the carrier. Fine will be sent for $20,000.00. BY SIGNING THIS RATE CON YOU AGREE ON THE FINE OF $20,000.00 IF ANY CUSTOMER OR CUSTOMER RELATED PERSON IS CONTACTED BY CARRIER'S. Carrier must not call shipper, receiver nor approach any contact from BOL.

4. TONU: In the event of the shipment order being canceled, Truck Order Not Used (TONU) will be issued to the carrier only if the truck already arrived and checked in with a pickup number at the Shipper location at the time of cancelation.

5. ACCESSORIAL CHARGES: All detention and any other accessorial charges must be approved by GFU within 24 hours of accessorial event occurring. Please note that in the accordance with companyh policy, the first 3 hours are free at the shippers and receivers. Payment of any accessorial charges will only be issued if GFU issues a revised GFU Load Confirmation inclusive of additional charges.

6. PROOF OF DELIVERY: Each and every page of shipment paperwork is required for payment. Bill of Lading (BOL) must be signed or stamped by authorized Consignee personnel for it to be considered Proof of Delivery (POD). Carrier must submit *complete* paperwork within 24 hours of delivery. If paperwork is not received within 1 business day after delivery, it will result in a $250.00 deduction.

7. DELAYS: Any delay must be reported immediately to GFU by Carrier or driver. Failure to notify delays will result in rate reductions. Any delays, missed pickup and delivery appointments may resulting in a deduction fine in unspecified amount which may vary from customer to customer. Arriving late for Walmart and Sams club appointment will result in $300 late-fee.
8.WEIGHT: Any quoted weight is subject to change. GFU has the right to change weight up to the DOT legal weight limit. GFU is paying for sole use of a trailer. Carrier must report any overage, shortages, damaged products and any other irregularities immediately to GFU. Driver must scale the freight before getting in route for delivery, to make sure the weight is within DOT legal weight limits.

9. EQUIPMENT WEIGHT: Overall payload weight goal for OTR shipments is 46300 LBS. The combined gross vehicle (tractor included with trailer) empty weight should be 33500 LBS for non-refrigirated equipment and 35500 LBS for refrigirated equipment. If carrier exceeds the applicable maximum equipment weight stated above, the Shipper reserves the right to make a pro-rate adjustment to the pricing. The Shipper reserves the right to charge the carrier $50 per shipment that violates the above stated weight policy by more than 1000 LBS.

10 .LUMPERS: Carrier is responsable to pay for any lumper charges and will be reimbursed with a copy of the receipt, which should be emailed, within 12 hours, to: accounting@grayfalconunited.com . Failure to comply will result in a rate deduction.

11. PAYMENT: Carrier will be paid only by GFU and will not contact the shipper, consignee or any customer of GFU for any payment of carrier's freight charges under this agreement. GFU is entitled to deduct any loss, shortage and/or damage, and claim the estimated amount, from any freight charges that may be owed to carrier. 45 to 60 Day Payment terms will apply for all invoices, (60 days direct payments, 45 via factoring)

12. DOUBLE BROKERING: Carrier is not allowed to double broker any shipment under any circumstances. Double brokering will result in all agreed charges to be fully revoked by GFU and reported to all load board platforms, carrier monitoring platforms, and FMCSA.

13. CARGO SEAL: Carrier is not to break the seal without getting a written confirmation from GFU. By booking a shipment with GFU, Carrier understands that the trailer is contracted to GFU for exclusive use and if these conditions are not met, deductions could apply.

14. TRAILER CONDITION: Carrier is responsible for ensuring trailer must be clean, dry, leak-proof, free of odor, in good condition free off infestations, blood, debris, other contaminants, and otherwise safe to transport the shipment's commodities. Door seals must be intact and drain plugs must be in place. GFU will not pay a TONU or any other fees for equipment being rejected due to poor conditions.

15. TEMPERATURE CONTROLED SHIPMENTS: All refrigerated trailers must have refrigeration units in good operating condition, with intact trailer chutes running full-length of trailer, and downloadable refrigeration unit data reporting capability. All refrigerated trailers must run continuously, at the required temperature as indicated on the GFU Load Confirmation, from pre-cooling by arrival at Shipper through shipment delivery at Consignee. In the event the temperature indicated on the Bill of Lading (BOL) is contradictory or confusing to the temperature indicated on GFU Load Confirmation, Carrier must resolve the contradictory or confusing temperature instructions immediately by notifying GFU. Written instructions by GFU must be obtained to resolve any contradictory or confusing temperature instructions before accepting the shipment for transport. Written instructions only amends the individual shipment in question. Failure to resolve any issue with the instructions prior to transport shall bar Carrier from using the contradictory or confusing instructions as a defense. Carrier is responsible for ensuring that Reefer units have been pre-cooled to the correct temperatures for appropriate loads prior to arriving at shipping facility. If a carrier is found not complying with these regulations and/or leaves the shipping locations without previously informing dispatcher or broker, carrier will be subjected to a deduction fee.

16. SAFE TRANSPORTATION OF FOOD SHIPMENTS: Carrier is responsible for and agrees to comply with all applicable laws, including all statutes, rules, regulations, and governmental guidance documents, in the performance of its services under agreement of this GFU Load Confirmation, including without limitation, those related to the transportation of food, food related products, and pharmaceuticals, as well as all instructions provided by GFU or the Shipper Bill of Lading (BOL) regarding transportation of the commodities tendered to it. Carrier will defend, indemnify, and hold GFU and Shipper harmless, including all GFU, expenses, and attorney fees related in any way to Carrier's violation of the requirements of this section, or all applicable laws and regulations. Carrier shall be responsible for the safety and sufficiency of all items, which could render the shipment unsafe, used in the transportation of the commodities, including all vehicles and transportation equipment as defined herein and in applicable law. Carrier shall ensure that no transportation equipment has been used to transport poison, refuse, garbage, trash or solid or liquid waste of any kind whatsoever, whether hazardous or non-hazardous. Carrier is responsible for all sanitary conditions during transport, and shall conduct regular temperature checks at regular intervals and document readings. Carrier must provide temperature data in a manner acceptable to GFU for each shipment, upon request. If GFU or BOL instructions require a cargo seal, the lack of a seal shall be sufficient to consider the shipment unsafe and a total loss. Carrier agrees that when transporting food for human consumption, late delivery, i.e. delivery after the deadline indicated on the transportation documents, alone shall be sufficient to reject a shipment and consider the cargo a total loss. Failure to comply with the provisions set forth herein or any instructions may result in a determination by GFU or Shipper that the goods transported are no longer safe and if such a determination is made, Carrier shall not sell or otherwise distribute the goods and shall dispose of the same at its expense. Any goods disposed of shall be considered a total loss and valueless for determining cargo loss and damage liability of Carrier. Carrier shall develop and maintain written procedures related to the safe transport of food products transported for GFU, shall train its drivers and staff regarding safe transport of food products, shall keep records of its procedures and training, and shall make these records available to Carrier upon request for at least three years after shipment. Carrier shall maintain records of its cleaning, sanitizing, and inspecting of all vehicles and transportation equipment, and shall make these records available to Carrier upon request for at least three years after the record is created.

17. ACCEPTANCE OF RATE CONFIRMATION: For the GFU Load Sheet / Load Confirmation to be accepted, Carrier MUST sign and date the Load Confirmation and return to GFU by fax or by email. If for any reason GFU does not receive the signed Load Confirmation from the Carrier, this Load Confirmation will be considered not accepted and will be canceled.

18. BOL INFORMATION: If the address on BOL does not match the address on rate confirmation GFU needs to be notified prior to departure from shipper, failure to do so will result in any redelivery GFU to the correct Consignee at the expense of the carrier alone and GFU will not be held accountable for any further cost incurred during the transit. Any and all changes regarding this matter have to have email approval from the GFU Management team, no verbal approvals will be taken in considerations.
All rates are quotes based on line and fuel plus chassis. Additional moves and charges must be sent for prior approval (prior to dispatch drivers).

Per diem charges must be sent when received from SSL to allow enough time for dispute. All per diems are 30 days allowed to submit for disputes and payments.

Updates must be provided on all pick up, delivery upon each delivery, followed by all interchanges, signed PODs by shipper and driver to avoid delay in processing payments

Unethical business practice or changing the agreement mid transit will result in deductions with the amount of the change that took place. All scommunication regarding payments, delay with equipment must be communicated directly to Gray Falcon team, so delays can be properly resolved. Charges may be assessed to carrier for late pickup or delivery! Carrier must still commit to all Hours of Service regulations.

Carrier send invoice to: Gray Falcon United LLC 1431 Opus Pl Ste 110 Downers Grove, IL 60515 or accounting@grayfalconunited.com. Original paperwork must accompany invoice! Carriers please be advised our payment terms are net 45 from the complete invoice delivery date for carriers working with factoring companies, otherwise you will be paid net 60. Absolutely no double-brokering. It is agreed that any re-brokering of this load will result in non-payment to carrier, in addition to any other penalties applicable by contract or by law.

The carrier is responsible for ensuring that the drivers behave ethically and reasonably, including the use of personal protective equpment (PPE). Any complaints from shippers, receivers or customers may lead to fines of up to $1000.

Carrier must provide an update on location every day. The Carrier must provide an update upon checking in and out on both pickup/s and delivery/s. Failing to do so can result in rate deduction of $50-$100. Providing false information on load status, location, etc. can result in rate deduction. Holding load over 1 day after delivery date can result in rate deduction. Carriers can not change appointments on their own without prior notice to Gray Falcon United LLC representatives failing to do so will result in rate deduction. Carrier must provide BOL/POD within 48hours upon delivery. PODs: NOT RECEIVED WITHIN 24 HOURS WILL BE A $150 LATE CHARGE PER DAY TO YOU AS THE CARRIER.

Phone: | Fax:
Please sign and return via fax or email to

Carrier Signature: _____ **Driver Name:** _____
MC#: _____ **Driver Phone#:** _____

Please call immediately with any questions, concerns, or problems!
Send Invoicing to: Gray Falcon United | 1431 Opus Pl Ste 110 | DOWNERS GROVE, IL 60515